

Jagdish Narayan v. State of U.P.

Allahabad High Court · Division Bench · 4 August 2021 · Writ - C No. 18466 of 2021 · **Writ disposed; 6.8 objection to be decided; coercive recovery stayed.**

HEADNOTE

Where a consumer's objection under clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 to a provisional assessment remained pending and recoveries were being pressed, the High Court, finding prima facie force in the contention that no demand could be raised until the objection was disposed of, disposed of the writ by directing a fresh objection, a time-bound hearing and a reasoned speaking order strictly in accordance with law, staying coercive measures for two months or until disposal, whichever earlier, with further recovery to abide that decision.

FACTUAL SUMMARY

Jagdish Narayan challenged recoveries being pressed on a provisional assessment dated 3 April 2021. He first received the bill on 28 May 2021 and, within fifteen days, filed an objection under clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 on 8 June 2021. The objection remained pending before respondent no. 2. He contended that, contrary to the Code, no demand could be raised until the objection was disposed of.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)(i)

pending-objection-to-provisional-assessment

HOLDING

A still-pending objection under clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 to a provisional assessment is to be heard and disposed of by the assessing officer by a reasoned speaking order strictly in accordance with law. The writ court will not keep the petition pending or call for a counter affidavit, will stay coercive recovery for a limited period pending that disposal, and will leave further recovery to abide the officer's decision. ¶ 1-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court treated a still-pending clause 6.8(b)(i) objection to a provisional assessment as warranting disposal of the writ by directing a fresh objection, a time-bound hearing and a reasoned order, with coercive recovery stayed for two months or until that disposal, whichever earlier. ¶ 1-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 3.4.2021 AND WHETHER RECOVERIES WERE CONTRARY TO THE SUPPLY CODE

The Court found only prima facie force in the clause 6.8(b)(i) contention and relegated the objection to respondent no. 2 for a reasoned order; further recovery was to abide that decision. ¶ 4-5